

#### Motion to Compel Further Response(s)

C.C.P. §2031.210 allows for three responses to an RFP: a statement that the party will comply, a representation of an inability to comply, or an objection. (C.C.P. §2031.210(a).).

Here, in her reply, plaintiff argues: “Nowhere does Defendant state that compliance will be in whole or in part..., and nowhere does Defendant state whether any responsive documents—whether outside that narrowed date range or otherwise—are being withheld on the basis of the objections it maintains....”

The fix this requires is narrow. Plaintiff does not ask the Court to decide whether Defendant’s boilerplate objections to these fifteen requests are ultimately valid. Plaintiff asks only that Defendant say, for each one, whether it is producing everything responsive or withholding something on the basis of an objection it still maintains—the disclosure Code of Civil Procedure sections 2031.220 and 2031.240, subdivision (b), already require of any response, regardless of the objection’s merit. Moreover, the court notes the instant motions were filed even though plaintiff’s counsel had received a written representation the day before the motion was filed that defendant would be supplementing many of its responses (Rushovich declaration, ¶12; Exhibit “I”) and the deadline for filing the motion to compel further responses was still a week away.

Since supplemental responses have been received, the parties are ordered to meet and confer over those responses before the court addresses the merits. The instant hearing is continued to November 19, 2026 at 8:30 a.m. to be heard with the other motion to compel further documents. Additionally, the parties are further ordered to submit supplemental briefing as to both motions describing their efforts to meet and confer over the supplemental responses and to provide new separate statements identifying each RFP still being disputed and the arguments as to why the supplemental response is or is not sufficient. The supplemental briefings, one by each side per motion, are due 15 days prior to the November 19, 2026 date.

#### **4.**

| <b>CASE #</b> | <b>CASE NAME</b>                         | <b>HEARING NAME</b>                                                                               |
|---------------|------------------------------------------|---------------------------------------------------------------------------------------------------|
| CVPS2603134   | RIVCO MECHANICAL SERVICES, INC. VS CLARK | MOTION TO STRIKE COMPLAINT ON CROSS-COMPLAINT OF MATT CLARK... BY RIVCO MECHANICAL SERVICES, INC. |

**Tentative Ruling:** Moot.

Cross Defendant Rivco moves to strike 21 portions from the XC, including the § 16600.1 voidness allegation, the attempted-enforcement and harm allegations, the § 16600.5 damages and fee requests, the wage/expense allegations, the word fraudulent, and the declaratory and injunctive prayer language, arguing they are irrelevant, improper, unsupported, overbroad, or not drawn in conformity with California law and rest on the false premise that Rivco’s protected-information case is really enforcement of paragraph 4 as a bare non-compete.

#### Motion to Strike

Under Code of Civil Procedure § 436, the court may strike from any pleading any irrelevant, false, or improper matter inserted therein, or any part of a pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. The court reads the challenged pleading as a whole, accepting well-pleaded factual allegations as true and giving the pleading a reasonable interpretation. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) The

grounds for a motion to strike shall appear on the face of the challenged pleading or matter which the court is required to take judicial notice. (C.C.P., § 437.)

The motion to strike is moot based on the court sustaining the operative complaint in its entirety with leave to amend.

**5.**

| CASE #      | CASE NAME                                | HEARING NAME                                                                    |
|-------------|------------------------------------------|---------------------------------------------------------------------------------|
| CVPS2603134 | RIVCO MECHANICAL SERVICES, INC. VS CLARK | DEMURRER ON CROSS-COMPLAINT OF MATT CLARK... BY RIVCO MECHANICAL SERVICES, INC. |

**Tentative Ruling:** Sustained.

Cross Complainant/Defendant Matt Clark is granted leave to file a 1<sup>st</sup> Amended Cross Complaint within 10 day of this order becoming final.

Plaintiff Rivco Mechanical Services, Inc. employed Defendant Matt Clark. Clark was a longtime trusted managerial-level employee at who while still employed by Rivco decided to leave and join a competitor. Rivco alleges that in the run-up to his departure, Clark secretly engaged in more than 950 file-access events in Rivco's confidential database and Microsoft business systems and accessed, downloaded, photographed, copied, or transmitted confidential files on multiple occasions, including files containing customer agreements, service-visit history, contract renewal dates and terms, customer contact information, pricing information, and other proprietary business data. Rivco alleges Clark also wrongfully removed, concealed, retained, or destroyed the original of the Employee Confidentiality Agreement ("Agreement") he had signed when hired in 2018. After, on November 4, 2025, Clark voluntarily resigned as a Rivco employee, he joined competitor EMCOR Services Mesa Energy ("EMCOR") and has used or threatened to use misappropriated trade secrets and confidential information to unfairly compete with Rivco, causing Rivco to lose customers, contracts, and business opportunities.

On April 7, 2026, Rivco filed this action. On June 11, 2026, it filed its operative First Amended Verified Complaint ("FAC") which pleads four (4) causes of action against Clark: 1) Misappropriation of Trade Secrets (Civ. Code §§ 3426, et seq.); 2) Breach of Contract; 3) Intentional Interference with Contractual Relations; and 4) Violation of Unfair Competition Law (Bus. & Prof. Code § 17200, et. seq.) Rivco seeks damages believed to be in excess of \$1,200,000 along with exemplary damages, attorney's fees, and temporary, preliminary, and permanent injunctive relief.

On July 10, 2026, Clark filed is Cross-Complaint ("XC") alleging three (3) causes of action: 1) Declaratory Relief (Code of Civ. Pro. § 1060); 2) Violation of Bus. & Prof. Code § 16600.5; and 3) Unfair Competition (Bus. & Prof. Code § 17200). Clark alleges the Agreement purports to prohibit him, for one year after termination of his employment for any reason, from contacting or soliciting any business or individual who has been a customer or prospect of Rivco's business, and from calling on, soliciting, or inducing any employee or officer of Rivco to terminate his or her employment (the "Restrictive Covenant") which is void and unenforceable.

Rivco now demurs to all three causes of action in Clark's XC. (C.C.P., § 430.10(e).) It argues the pleading rests on a false premise that Rivco is attempting to enforce paragraph 4 of the Agreement as a non-compete or bare customer non-solicitation covenant when in fact Rivco expressly alleges that it does not seek to enforce that paragraph but instead seeks relief for Clark's misuse of protected information, breach of confidentiality and company-property obligations, and other independently wrongful conduct. Rivco argues the 1<sup>st</sup> cause of action is